

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: March 12, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 7	24CV450079	HERITAGE BANK OF COMMERCE vs H2-MDZ LLC	Motion for Entry of Default Judgement The Court notes that under common practice, submitted default judgment packets are reviewed and decided on the papers without a calendared motion. Nevertheless, Plaintiff's "Application for Default Court Judgment" is GRANTED. The Court will sign the previously submitted JD-100.
LINE 8	24CV453875	PNC Bank, National Association, vs WADE'S INC. et al	Hearing: Writ of Possession to Wade's Inc. Off calendar.
LINE 9	24CV453875	PNC Bank, National Association, vs WADE'S INC. et al	Hearing: Writ of Possession to Byron C. Wade, and individual Off calendar.

- oo0oo -

Calendar Line 1

Case Name: *Hamid Khazaeli v. Julie Cliff et al.*

Case No.: 24CV448245

I. BACKGROUND

Plaintiff Hamid Khazaeli brings this legal malpractice action against defendants Julie Cliff, Esq. (“Cliff”) and The Law Office of Julie B. Cliff (collectively, “Defendants”).

According to the allegations of the first amended complaint (“FAC”), in or around October 2016, Plaintiff obtained a money judgment in the amount of \$5,147,898 for employment discrimination. (FAC, ¶ 5.) On January 17, 2019, Plaintiff filed a third amended complaint alleging six causes of action. (*Ibid.*) In or around March 2020, Plaintiff received an adverse judgment. (*Ibid.*) On August 20, 2020, Plaintiff filed a notice of appeal in the trial court. (*Ibid.*)

In August 2022, Defendants, on behalf of Plaintiff, filed a motion to augment and Appellant Opening Brief in the Sixth District Court of Appeal. (FAC, ¶ 6.) In the process of representing Plaintiff, Defendants committed “a multitude of wrongdoings and legal errors, irreparably damaging and prejudicing Plaintiff’s case.” (FAC, ¶ 7.) Because of these wrongdoings, Plaintiff was unable to collect on his valid money judgment in the amount of \$5,147,898, and instead collected nothing. (FAC, ¶ 8.)

On October 23, 2024, Plaintiff filed the operative FAC, asserting the following causes of action against Defendants:

- 1) Professional Negligence;
- 2) Breach of Fiduciary Duty;
- 3) Breach of Contract; and
- 4) Conversion.

On December 9, 2024, Defendants filed a general denial and asserted nine affirmative defenses. On December 19, 2024, Plaintiff filed a demurrer to Defendants’ answer. Defendants oppose. Plaintiff filed a reply. Both parties appear in pro per.¹

¹ “[W]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” (*Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267 [internal citations omitted]; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985 “[a] doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation”]; see also *McClain v. Kissler* (2019) 39 Cal.App.5th 399, 416.)

II. LEGAL STANDARD

A plaintiff may demur to a defendant's answer within 10 days of being served with the answer (Code Civ. Proc., § 430.40, subd. (b)) on three grounds: (1) failure to state facts sufficient to constitute a defense; (2) uncertainty; or (3) failure to state whether a contract alleged in the answer is written or oral. (Code Civ. Proc., § 430.20.)

The demurrer may be to the whole answer or to any one or more of the several defenses set up in the answer. (Code Civ. Proc., § 430.50, subd. (b).) The plaintiff may not, however, demur to part of a defense and, in order to determine the sufficiency of a defense, it must be considered as a whole. Each defense must be considered separately without regard to any other defense, and one defense does not become insufficient because it is inconsistent with any other parts of the answer. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733 (*South Shore Land Co.*)).

The critical inquiry when a plaintiff demurs to an answer is whether the answer raises a defense to plaintiff's stated cause of action. (*Timberidge Enterprises, Inc. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 879-880.) Affirmative defenses presented in an answer must plead ultimate facts to the same extent as required in a complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.)

A general denial places at issue the material allegations of the complaint. (*Advantec Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627; see also *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 383 (*FPI Development*)). "A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense." (Code Civ. Proc., § 431.10, subd. (a).)

An affirmative defense is "new matter" not in issue under a general denial. (See *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 239 (*Harris*) ["if the onus of proof is thrown upon the defendant, the matter to be proved by him is [a] new matter"].) "New matter" must be specifically pled in the answer. (*Ibid.*) Thus, "affirmative defenses cannot be pled as mere legal conclusions but must instead be alleged with as much factual detail as the allegations of a complaint." (*Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 813 (*Quantification Settlement*)).

"The determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action." (*South Shore Land Co., supra*, 226 Cal.App.2d at p. 732.) "[T]he demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer." (*Id.* at p. 733.) Unlike a demurrer to the complaint, "the defect in question need not appear on the face of the answer" as "[t]he determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (*Ibid.*)

III. MEET AND CONFER EFFORTS

As a preliminary matter, Defendants argue that Plaintiff has not satisfied meet and confer obligations as required by Code of Civil Procedure section 430.41. (See Opposition, pp. 3-6.)

Code of Civil Procedure section 430.41 requires a demurring party to meet and confer with the party who filed the challenged pleading to seek informal resolution of the demurring party's objections. (Code Civ. Proc., § 430.41, subd. (a).) The meet and confer must be conducted in person or by telephone, and must address each cause of action or affirmative defense to be included in the demurrer. (*Ibid.*) "The parties shall meet and confer at least five days before the date the responsive pleading is due." (Code Civ. Proc., §430.41, subd. (a)(2).) If these efforts fail, the demurring party must file and serve a declaration regarding the meet and confer process with the demurrer. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Defendants assert that Plaintiff emailed Cliff regarding his intent to file a demurrer, she responded and notified Plaintiff of a recent stroke and her ability to communicate only over email. Plaintiff responded by directing Cliff to seek accommodations. Cliff stated that she was aware of the ADA. Instead of accommodating her request to communicate by email, Plaintiff disregarded her email and filed his demurrer.

The emails attached to Cliff's declaration indicate that she explained her situation, that she was temporarily verbally disabled, and stated that she was available to meet and confer via email whenever it would be convenient. (See Cliff Decl., Ex. A.) In Plaintiff's declaration, attached to his demurrer, he indicates he made a request to meet and confer and that Defendants did not respond to the request according to the methods in the code. In Plaintiff's reply, he states that the code only authorizes meet and confer via phone or in person.

The purpose of meet and confer efforts is for the parties to make a reasonable and good faith attempt at working out their differences informally. Courts routinely determine that meet and confer efforts made via email are sufficient for purposes of the Code of Civil Procedure when done in good faith and for good cause. Here, Plaintiff's rigid posture regarding meet and confer efforts in response to Cliff's proffered disability regarding oral communication was contrary to the spirit of both the law and the courtesy to be afforded in professional settings. It is also difficult to glean a good faith effort at informal resolution from Plaintiff's pronouncement, "I will be doing most of the talks [sic] and you will either accept or not to resolve the issues in the answer." In the context of meeting and conferring, "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1439.)

Regardless, a court's determination that the meet and confer process was insufficient is not a ground to sustain or overrule a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4); see also *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.) The Court declines to make findings or to issue sanctions related to the parties' meet and confer efforts. At this point, the Court simply reminds the parties that they must undertake all meet and confer obligations set forth in Code of Civil Procedure with sincerity and good faith and, importantly, not as a mere superficial obligation, but in a deliberate effort reach agreements and avoid or minimize court involvement.

IV. DEMURRER TO THE ANSWER

Plaintiff demurs to Defendant's answer on the ground it is uncertain and fails to state facts sufficient to constitute a defense.

a. Uncertainty

Uncertainty is a disfavored ground for demurrer; it is typically sustained only where the pleading is so unintelligible and uncertain that the responding party cannot reasonably respond to or recognize the claims alleged against it. (See *Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) "[T]he failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty." (*Fenton v. Groveland Community Services Dist.* (1982) 135 Cal.App.3d 797, 809, overruled on other grounds by *Katzberg v. Regents of University of California* (2002) 29 Cal.4th 300, 328, fn. 30.)

Here, Plaintiff's arguments in support of uncertainty are largely intertwined with points raised in connection with the general demurrer for failure to state facts. In other words, there are no separate and distinct arguments raised to support a special demurrer for uncertainty. Further, the affirmative defenses, each identified specifically by name, do not appear to be so vague, ambiguous, or uncertain that Plaintiff cannot reasonably respond to them. To the extent there is any such uncertainty, the parties can clarify those ambiguities utilizing civil discovery procedures. (See *Davies v. Superior Ct.* (1984) 36 Cal.3d 291, 299 [purpose of civil discovery is to take game element out of trial preparation and assist parties in obtaining facts and evidence necessary for expeditious resolution of their dispute].)

Consequently, the demurrer to the 1st through the 9th affirmative defenses on the ground of uncertainty is OVERRULED.

b. Failure to State Sufficient Facts

Plaintiff argues each affirmative defense consists only of legal conclusions and fails to allege sufficient facts to constitute a valid defense.

i. First and Eighth Affirmative Defenses – Failure to State a Claim and Vagueness and Uncertainty

Defenses based on the failure to state a cause of action or uncertainty of the allegations do not require facts to be pled in support thereof; because they contradict the material allegations of the complaint, they do not raise new matter. (See Code Civ. Proc. § 430.20; *Harris, supra*, 56 Cal.4th at p. 239.)

The Court OVERRULES the demurrer to the first affirmative defense and the eighth affirmative defense.

ii. Second Affirmative Defense – Doctrine of Estoppel

The law requires a defendant to allege sufficient facts in support of each affirmative defense. Here, there are no allegations of binding arbitration in the FAC and the parties'

agreement is not attached to the pleading or a proper subject of judicial notice, thus, it raises new matter. The affirmative defense is devoid of facts establishing why estoppel is applicable. (See *Schrader Iron Works, Inc. v. Lee* (1972) 26 Cal.App.3d 621, 636 [“Adverting to the doctrine of estoppel, we note that its application requires the establishment of four elements, to wit: ‘(1) that the party to be estopped must be apprised of the facts; (2) he must intend that his conduct will be acted upon, or act in such a manner that the party asserting the estoppel could reasonably believe that he intended that his conduct to be acted upon; (3) the party asserting the estoppel must be ignorant of the true state of the facts; and (4) he must rely upon the conduct to his injury.’”].)

The Court SUSTAINS the demurrer to the second affirmative defense with 10 days leave to amend.

iii. Third Affirmative Defense – Statute of Limitations

All that is necessary to state an affirmative defense of statute of limitations is to specify the applicable sections; no additional facts are required. (See Code Civ. Proc., § 458; see also *Brown v. World Church* (1969) 272 Cal.App.2d 684, 691 [“It is necessary for defendant who pleads the statute of limitations to specify the applicable section, and, if such section is divided into subdivisions, to specify the particular subdivision or subdivisions thereof.”].) Here, the third affirmative defense indicates the sections and subdivisions of the Code of Civil Procedure that are applicable.

The Court OVERRULES the demurrer to the third affirmative defense.

iv. Remaining Affirmative Defenses

The Court SUSTAINS the demurrer to the fourth (waiver), fifth (laches), sixth (doctrine of unclean hands), seventh (doctrine of unjust enrichment), and ninth (consent) affirmative defenses with 10 days leave to amend. Defendants fail to allege any facts to support any of these affirmative defenses and simply rely on conclusory statements. (See *FPI Development, supra*, 231 Cal.App.3d at 384 [affirmative defenses must not be pled as “terse legal conclusions,” but “rather...as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint’.”]. As stated above, an affirmative defense is not well-pled unless it includes ultimate facts to support assertions of the same. (See *FPI Development, supra*, 231 Cal.App.3d at 384.) Defendant fails to do that here. Thus, the fourth, fifth, sixth, seventh, and ninth affirmative defenses cannot survive demurrer. (See *Westly v. Board of Administration* (2003) 105 Cal.App.4th 1095, 1117.)

V. CONCLUSION AND ORDER

The demurrer to the answer and each of its affirmative defenses on the ground of uncertainty is OVERRULED. The demurrer to the first, third, and eighth affirmative defenses for failure to state sufficient facts is OVERRULED.

The demurrer to the second, fourth, fifth, sixth, seventh, and ninth affirmative defenses for failure to state sufficient facts is SUSTAINED with 10 days leave to amend.

The Court will prepare the final order.

- oo0oo -

Calendar Line 2, 3, and 4

Case Name: *Monar, LLC v. Kenneth Rodrigues & Partners, Inc., et al.*

Case No.: 24CV442463

Before the Court are Plaintiff/Cross-Defendant Monar, LLC's ("Monar" or "Plaintiff" or "Cross-Defendant") (1) demurrer to the Cross-Complaint ("Cross-Complaint") filed by Defendants/Cross-Complainants Kenneth Rodrigues & Partners, Inc. and Kenneth Rodrigues (collectively, "KRP" or "Cross-Defendants"), (2) motion to strike portions of the Cross-Complaint, and (3) motion to compel responses to Form Interrogatories ("FI"), Set One. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. Background

A. Complaint

This is an action for professional negligence arising out of the design work for a new building. According to the allegations of the Complaint, on May 1, 2015, KRP, an architectural and professional design firm, and Monar's predecessor in interest, Oscar Bakhtiari doing business as Bakhtiari Auto Group ("BAG"), entered into a written agreement entitled "Proposal for the Schematic Design, Design Development Construction Document Phases" for the "Stevens Creek Subaru Project" (the "Design Agreement"). (Complaint, ¶ 10 and Exhibit A.) The Stevens Creek Subaru Project (the "Project") involved the design for new construction of a three-story auto dealership building with roof-deck parking and related facilities on real property owned by Monar and located at 3215, 3221 and 3225 Stevens Creek Boulevard in San Jose (collectively, the "Property"). (*Id.*)

The Design Agreement (particularly, the "Scope of Work") required KRP to: (a) Prepare Schematic Design documents and drawings (i.e., plans, elevations and sketches) for the Project, including but not limited to site plans, floor plans, roof plans, building sections and elevations; (b) Prepare Design Development documents based on the approved Schematic Design; (c) Provide Construction Documents based on the approved Design Development documents and a Project budget and schedule, and including drawings and specifications that establish in detail the quality level of systems and materials, as well as detailed requirements for construction and submittal to building department agencies; (d) Assist Owner with preparation of bidding documents, respond to building department comments thereon, and coordinate preparation of final permit submittals; (e) Work with the general contractor to achieve Owner's budget for the Project; and (f) Provide construction administration service to Owner.² (Complaint, ¶ 11.) The Design Agreement set forth a preliminary schedule for delivery of the Schematic Design documents and the Design Development documents at three and four months, respectively. (*Id.*, ¶ 12.) KRP prepared and delivered to Monar various aspects of the Plans on June 20, July 29 and August 16, 2026, well over a year after the date of the Design Agreement. (*Id.*, ¶ 13.)

² The Schematic Design documents, Design Development Documents and Construction Documents will be collectively referred to as the "Plans."

On October 17, 2016, BAG entered into a “Standard AIA Form of Agreement Between Owner and Contractor” (the “Construction Contract”) with Teamwrx Construction, Inc. (the “Contractor”) to perform construction of the project based on KRP’s Plans. (Complaint, ¶ 14.) The original sum to be paid under the parties’ agreement was \$11,700,000 and the anticipated start date of construction was December 1, 2016, with the actual start date to be upon receipt of approval from all government agencies. Further, the Construction Contract provided that the duration of construction would be 12 months from commencement. (Complaint, ¶ 16.)

On January 30, 2017, KRP, BAG and TEPA, LLC (“TEPA”), entered into a First Amendment to the Design Agreement, whereby BAG assigned to TEPA its rights and obligations as “Owner” under the agreement. (Complaint, ¶ 17.) On April 17, 2017, BAG and the Contractor executed a first amendment to the Construction Contract pursuant to which BAG was replaced by TEPA as the true Owner of the Property. (*Id.*, ¶ 18.) On May 11, 2017, TEPA and KRP executed a written assignment under which TEPA assigned to Monar all of its obligations (and rights, including potential claims) under the Design Agreement. (*Id.*, ¶ 19.)

From the time it was hired by Owner in May 2015 through the time KRP unilaterally terminated the Design Contract and its services thereunder on October 31, 2018, prior to Project completion, KRP remained engaged as the official architect for the Project. (Complaint, ¶ 21.) However, KRP’s services on the Project were allegedly deficient in numerous respects, resulting in significant delays and monetary damage to Plaintiff. Monar alleges that it/TEPA/BAG, i.e., the “Owner,” were unable to obtain necessary permits in time due to KRP’s failure to provide all documents as required under the Design Agreement. (*Id.*, ¶ 22.) It was not until November 2019, nearly three years after construction was supposed to commence, and nearly two years after construction was initially expected to be complete, that the last of the necessary construction permits was obtained. (*Ibid.*) These delays caused “massive” cost increases to the “Owner” of the Project. Monar alleges that there were also significant design deficiencies in the Plans. (*Id.*, ¶ 23.)

As a result of the aforementioned problems and delays, the cost of construction surpassed \$20 million, or over \$8.3 million more than the initial budget amount set forth in the Construction Contract. (Complaint, ¶ 24.) Monar alleges that Defendants committed professional negligence in the provision of architectural and related design and supervisory services to it.

Monar initiated this action on July 3, 2024 with the filing of the Complaint, which asserts the following causes of action: (1) professional negligence (architectural malpractice); (2) negligent supervision; and (3) breach of contract.

B. Cross-Complaint

In the Cross-Complaint, KRP allege that on May 1, 2015, they entered into a written Professional Services Agreement (“PSA” or “Contract”) with BAG to provide architectural plans for the Stevens Creek Subaru Project (the “Project”). The Contract was eventually assigned by BAG to Monar. (Cross-Complaint, ¶ 8.) Monar was allegedly late with several payments and made persistent demands for plan changes, last-minute modifications and alternations. (*Id.*)

In or sometime before October 22, 2018, Monar demanded that an in-ground hoist system be installed, despite being fully aware that the plans provided for an above-ground lift system. (Cross-Complaint, ¶ 12.) The Project abuts a residential neighborhood, and an above-ground lift system is not subject to review by the California Environmental Quality Act (“CEQA”). (*Id.*, ¶ 13.)

On October 22, 2018, KRP sent a letter to Monar stating that it was terminating the PSA. (Cross-Complaint, ¶ 14.)

KRP allege that they successfully performed all that was required of them under the PSA, but Monar failed to pay all amounts due thereunder, thereby breaching the agreement. They filed the Cross-Complaint on September 6, 2024, asserting claims for: (1) breach of contract; (2) open book account; (3) quantum meruit; and (4) unjust enrichment.

On November 7, 2024, Monar filed the instant demurrer to the fourth cause of action in the Cross-Complaint on the grounds of uncertainty and failure to state sufficient facts and the motion to strike.³ (Code Civ. Proc., §§ 430.10, subds. (e) and (f), 435 and 436.) Monar filed the motion to compel on December 23, 2024.

II. Monar’s Demurrer

A. Legal Standard

In ruling on a demurrer, a court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a demurrer, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.

B. Discussion

As articulated above, Monar demurs to the fourth cause of action for unjust enrichment. In this claim, KRP allege that Monar used and revised their architectural plans for the Project but failed to make full payment for the services KRP provided, and thus unjustly retained the benefit of those services at KRP’s expense. (Cross-Complaint, ¶¶ 31-32.) Monar maintains that its demurrer to the fourth cause of action should be sustained because (1) unjust enrichment is not a valid cause of action and (2) it fails as a quasi-contract claim.

“Unjust enrichment is not a cause of action, ... or even a remedy, but rather ‘a general principle, underlying various legal doctrines and remedies[.]’” (See *McBride v.*

³ Monar offers not argument in support of its uncertainty ground. Consequently, the demurrer on this ground is OVERRULED.

Boughton (2004) 123 Cal.App.4th 379, 387 (*McBride*) (internal citations omitted).) Unjust enrichment is synonymous with restitution. (*Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, 1138 (*Levine*).) However, it is also the case, as Monar implicitly acknowledges, that the labeling of a cause of action as “unjust enrichment” is not dispositive of whether a cause of action has been stated. (*McBride, supra*, 123 Cal.App.4th at 387.) A court deciding a demurrer must look to the gravamen of the complaint to determine if any cause of action is stated. (*Ibid.*) “The nature and character of a pleading is to be determined from the facts alleged, not the name given by the pleader to the cause of action.” (*Ananda Church of Self-Realization v. Massachusetts Bay Ins. Co.* (2002) 95 Cal.App.4th 1273, 1281.)

Restitution is also not a cause of action but a remedy. (*Levine, supra*, 189 Cal.App.4th at 1138; *Munoz v. McMillan* (2011) 195 Cal.App.4th 648, 661 (*Munoz*).) “Common law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient; a typical cause of action involving such remedy is ‘quasi-contract.’” (*Munoz*, 195 Cal.App.4th at 661, citing *McBride* at 388-389.) “There are several potential bases for a cause of action seeking restitution. For example, restitution may be awarded in lieu of breach of contract when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason. Alternatively, restitution may be awarded where the defendant obtained a benefit from the plaintiff by fraud, duress, conversion, or similar conduct.” (*McBride*, 123 Cal.App.4th at 388.) “In such cases, the plaintiff may choose not to sue in tort, but instead seek restitution on a quasi-contract theory In such cases, where appropriate, the law will imply a contract (or rather, a quasi-contract), without regard to the parties’ intent, in order to avoid unjust enrichment.” (*Ibid.*, internal citations omitted.)

“As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract.” (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370; *Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 203.) However, a party to an express contract can assert a claim for restitution based on unjust enrichment as a quasi-contract claim by “alleg[ing in that cause of action] that the express contract is void or was rescinded.” (*Rutherford Holdings, LLC v. Plaza Del Ray* (2014) 223 Cal.App.4th 221 231 (citing *Lance Camper Manufacturing Corp., supra*, 44 Cal.App.4th at 203).) “A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement.” (*Rutherford Holdings, LLC*, 223 Cal.App.4th at 231 (citation omitted).)

Here, Monar contends that even if the Court looks beyond the label of the fourth cause of action, KRP have not stated a cognizable claim for restitution. KRP acknowledge in the Cross-Complaint that an express contract - the Design Agreement/PSA - exists between KRP and Monar (Cross-Complaint, ¶¶ 8-9, 16); thus, KRP plead the unjust enrichment cause of action seeking restitution in the alternative. However, as Monar maintains, KRP plead no facts which establish that the Design Agreement/PSA was void, procured by fraud or mistake, or is otherwise unenforceable or ineffective. In other words, they have not pleaded any basis that entitles them to restitution.

In their opposition, KRP claim (according to Monar, for the first time) that Monar “required the installation of an in-ground hoist system that was not provided for in [KRP’s] plans, and required review for contravention of environmental laws” that would “render the contract potentially void.” (Opp. at 3:28-4:4.) But KRP do not expressly allege in the Cross-

Complaint that the foregoing rendered the Design Agreement void, much less how it did so, and the Design Agreement itself does not appear to make any mention of a hoist system or environmental review under CEQA. (See Complaint, ¶ 10, Exhibit A.) While KRP insist that the Cross-Complaint “states that Monar obtained a benefit from [KRP] through tortious conduct by improperly using and revising [KRP’s] architectural plans, and not paying [KRP] for their services,” they do not actually allege in the pleading that such conduct is tortious or how it qualifies as such. Given the foregoing, the Court agrees with Monar that no claim for restitution has been stated.

Monar’s demurrer to the fourth cause of action on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED with 10 days leave to amend.

III. Monar’s Motion to Strike

A. Legal Standard

Under Code of Civil Procedure section 436 a court may strike out any irrelevant, false, or improper matter inserted into any pleading or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437(a); see also *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63, citing *Clauson v. Super. Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

B. Discussion

Monar moves to strike the portion of the Cross-Complaint wherein KRP seek “restitution in the amount of at least \$350,000” based on, as argued in the demurrer, KRP’s failure to plead an entitlement to such a remedy. Given the Court’s ruling on the demurrer, the motion to strike MOOT.

IV. Monar’s Motion to Compel Responses

Monar moves to compel responses to FI-Construction Litigation, Set One, from Defendants and also requests monetary sanctions.

A. Legal Standard

The party to whom interrogatories have been propounded is required to serve a response within 30 days, or on any later date to which the parties have agreed. (Code Civ. Proc., §§ 2030.260, subd. (a) and 2030.270, subd. (a).) If the party to whom the interrogatories are directed fails to serve a timely response, that party waives any objections to those requests, and the propounding party may move for an order compelling a response. (Code Civ. Proc., § 2030.290, subds. (a) and (b).) The moving party need only demonstrate that the interrogatories were properly propounded, and a response was not served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

B. Discussion

Per the declaration of Monar's counsel filed in support of its motion, on November 8, 2024, his office served Defendants with the subject discovery. (See Declaration of David M. Jolivet in Support of Motion to Compel Responses to FI ("Jolivet Decl."), ¶ 3 and Exhibit 2.) On December 6, 2023, Defendants' counsel requested a two-week extension to respond to the FI, i.e., to December 24, 2024. (*Id.*, ¶ 4 and Exhibit 3.) That same day, another attorney in Monar's counsel's office advised opposing counsel that Monar would agree to a limited extension to December 16, 2024, on the condition that KRP would agree to provide: (a) substantive responses to the FI, particularly as to FI No. 304 and its subparts, rather than "objection-only" responses; and (b) a verification with the responses. (Jolivet Decl., ¶ 5, Exhibit 4.) Counsel requested written confirmation of these conditions and the new response deadline; none was received. (*Id.*, ¶¶ 5-6.) Thereafter, KRP failed to provide responses to the FI by the original deadline of December 10, 2024, or by the proposed conditional extension deadline of December 16, 2024.

The foregoing is sufficient to establish that the FI were properly propounded and that responses were not served and thus Monar has met its burden on its motion. In their opposition, KRP acknowledge their failure to provide responses, which they explain was the result of their counsel's "honest mistake in missing the deadline," and state that they and their counsel are working "diligently" to complete their responses. (See Declaration of David A. Ericksen in Support of Opposition to Motion to Compel, ¶ 2.) The Court recognizes this apparent mistake, but as responses have yet to be provided, it will GRANT Monar's motion.

The Court additionally will grant Monar's request for monetary sanctions, which must be imposed unless the Court determines that the opposing party (here, the one subject to the sanctions) "acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2020.290, subd. (c).) Defendants have not established either of the foregoing and thus sanctions are warranted.

Monar requests monetary sanctions in the amount of \$5,100.00 which, according to the supporting declaration of Plaintiff's counsel, is based on 7 hours of work to prepare the motion at a rate of \$360 per hour, 7 hours of anticipated time to review the opposition, prepare the reply and attend the hearing at that same rate, and a \$60 filing fee. The Court will not award sanctions for anticipated time, and while a reply has been submitted, it is not supported by a declaration from counsel articulating the actual amount of time spent on its preparation. Therefore, Monar's request for sanctions is GRANTED IN PART. The Court will award sanctions in the amount of \$2,580.00 ($[\$360/\text{hr} \times 7] + \60) to be paid within 30 days of service of the final order.

The Court will prepare the final order.

- oo0oo -